The Elder Law Attorney Meeting Checklist

Papers to find, facts to write down and questions to bring now that Mom needs care.

Mom needs care now, and the legal questions came with it: who can sign for her, what the power of attorney covers, what happens with the house. Before your family sits down with an elder law attorney, these are the things to have in hand. Check what you've done. Anything unchecked is something still to find or write down, not a verdict on Mom's papers or on your family.

Find

- [ ] The power of attorney Mom signed for money and property, if there is one: the whole document, including the signature page.
- [ ] Her healthcare decision-making documents, such as a healthcare power of attorney or a living will.
- [ ] Any trust, and her will if she has one, with anything that was added to either later.
- [ ] The deed to her home, and to any other real property she owns.

Write down

- [ ] Who each document names to act for Mom, copied the way the document says it, with the date on the document, for the attorney to confirm.
- [ ] What you've seen of how Mom is handling money and paperwork decisions lately, written as what you saw and when, not what you think it means.
- [ ] How her home and other property are titled, as far as the papers show: whose names are on the deed, including a spouse's.
- [ ] Any gifts, transfers or ownership changes already made: what, to whom, and the date as best you know it.
- [ ] Any change the family has been talking about, such as the house, other assets or a beneficiary, marked “being discussed.”

Bring

- [ ] A short, written list of your legal questions for the attorney.
- [ ] The question of authority, asked as a question: does the existing power of attorney or trust allow what needs to be done for Mom now?
- [ ] The question about the house and other assets, asked before anything is moved or retitled: what would the attorney want to review first?
- [ ] Anything you've heard about a spouse's situation or about estate recovery that you'd like explained for your family.

- [ ] The financial information your family has already organized, so the attorney sees the papers and the numbers together.

What this checklist doesn't do

It helps you find, write down and ask. It doesn't say what any paper means, who has authority to act for Mom, or what your family should do about the house. Those are questions for an elder law attorney who knows your state's rules. Nothing here is legal, financial or tax advice.

Ready for the next step?

You know which papers to find, which facts to write down and which questions to bring. The planning interview asks about the rest of your family's situation and gives you a free planning report you can bring to the attorney meeting and to any conversation about paying for Mom's care.

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